

**BEFORE THE  
FEDERAL MARITIME COMMISSION**

Case No.: 22-23

MARINE TRANSPORT LOGISTICS, INC

Complainant

vs.

CMA CGM, S.A.

Respondent

**RESPONSE TO CMA’S  
INTERLOCUTORY APPEAL**

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CMA appeals pursuant to 46 C.F.R. §502.150(d), however, this section applies to “Orders of the presiding officer directed to persons or documents located in a foreign country.” However, it is CMA’s (as they call it) “agent” (CMA-CGM (America ), LLC) that maintains all of the documents that are part of MTL’s request for documents. These are the same types of documents that were produced by CMA when MTL filed its proceedings against CMA under Docket No. 18-07, without first obtaining the approval of anyone in France.

It is also noteworthy that when CMA-CGM (America), LLC was a Respondent under Docket No. 18-07, nobody had to contact any French authorities before exchanging documents, and it is clear that CMA was not prosecuted in that case.

To avoid repetition, I am respectfully asking the Commission to consider the submissions previously made under Docket Entry #25 on March 16, 2023, in response to CMA’s motion to extend discovery.

Dated: April 17, 2023

Respectfully Submitted,

*Garry Pogil*

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